

SENATE No. 802

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to support behavioral health prevention for children.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 802

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 802) of Patrick M. O'Connor for legislation to support behavioral health prevention for children. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to support behavioral health prevention for children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, is hereby amended by inserting after
2 section 33 the following section:-

3 Section 34. (a) For the purpose of this section, the following term shall have the
4 following meaning:

5 “Preventive behavioral health services”, short-term interventions in supportive group,
6 individual, or family settings that cultivate coping skills and strategies for symptoms of
7 depression, anxiety, and other social and emotional concerns, which may prevent the
8 development of behavioral health conditions for members who are under 21 years old who have
9 a positive behavioral health screening, or, in the case of an infant, a caregiver with a positive
10 post-partum depression screening, even if the individual does not meet criteria for behavioral
11 health diagnosis.

(b)(1) Any coverage offered by the commission to an active or retired employee of the commonwealth under the group insurance commission shall provide coverage for no fewer than six sessions of preventive behavioral health services provided by a qualified licensed behavioral health clinician, or a non-licensed clinician or trainee under supervision, without requiring prior authorization. Coverage shall include individual, family and group sessions when delivered by a behavioral health clinician practicing in an integrated pediatric primary care setting and group sessions when delivered in community-based outpatient and school settings. Preventive behavioral health services shall be covered with no patient cost-sharing; provided, however, that cost-sharing shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost-sharing for this service.

(2) The commission and its contracted carriers shall accept an alternative diagnosis code, including a Social Determinants of Health Z-code, as the primary diagnosis from eligible providers submitting claims for preventive behavioral health services.

SECTION 2. Chapter 175 of the General Laws, is hereby amended by inserting after section 47UU the following section:-

Section 47VV. (a) For the purpose of this section, the following term shall have the following meaning:

“Preventive behavioral health services”, short-term interventions in supportive group, individual, or family settings that cultivate coping skills and strategies for symptoms of depression, anxiety, and other social and emotional concerns, which may prevent the development of behavioral health conditions for members who are under 21 years old who have

34 a positive behavioral health screening, or, in the case of an infant, a caregiver with a positive
35 post-partum depression screening, even if the individual does not meet criteria for behavioral
36 health diagnosis.

37 (b)(1) A policy, contract, agreement, plan or certificate of insurance issued, delivered or
38 renewed within the commonwealth shall provide coverage for no fewer than six sessions of
39 preventive behavioral health services provided by a qualified licensed behavioral health
40 clinician, or a non-licensed clinician or trainee under supervision, without requiring prior
41 authorization. Coverage shall include individual, family and group sessions when delivered by a
42 behavioral health clinician practicing in an integrated pediatric primary care setting and group
43 sessions when delivered in community-based outpatient and school settings. Preventive
44 behavioral health services shall be covered with no patient cost-sharing; provided, however, that
45 cost-sharing shall be required if the applicable plan is governed by the Federal Internal Revenue
46 Code and would lose its tax-exempt status as a result of the prohibition on cost-sharing for this
47 service.

48 (2) Payers covered under this section shall accept an alternative diagnosis code, including
49 a Social Determinants of Health Z-code, as the primary diagnosis from eligible providers
50 submitting claims for preventive behavioral health services.

51 SECTION 3. Chapter 176A of the General Laws, is hereby amended by inserting after
52 section 8VV the following section:-

53 Section 8WW. (a) For the purpose of this section, the following term shall have the
54 following meaning:

“Preventive behavioral health services”, short-term interventions in supportive group, individual, or family settings that cultivate coping skills and strategies for symptoms of depression, anxiety, and other social and emotional concerns, which may prevent the development of behavioral health conditions for members who are under 21 years old who have a positive behavioral health screening, or, in the case of an infant, a caregiver with a positive post-partum depression screening, even if the individual does not meet criteria for behavioral health diagnosis.

(b)(1) Any contract between a subscriber and a corporation subject to this chapter, pursuant to an individual or group hospital service plan that is delivered, issued or renewed within or without the commonwealth shall provide coverage for no fewer than six sessions of preventive behavioral health services provided by a qualified licensed behavioral health clinician, or a non-licensed clinician or trainee under supervision, without requiring prior authorization. Coverage shall include individual, family and group sessions when delivered by a behavioral health clinician practicing in an integrated pediatric primary care setting and group sessions when delivered in community-based outpatient and school settings. Preventive behavioral health services shall be covered with no patient cost-sharing; provided, however, that cost-sharing shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost-sharing for this service.

(2) Payers covered under this section shall accept an alternative diagnosis code, including a Social Determinants of Health Z-code, as the primary diagnosis from eligible providers submitting claims for preventive behavioral health services.

SECTION 4. Chapter 176B of the General Laws, is hereby amended by inserting after section 4VV the following section:-

Section 4WW. (a) For the purpose of this section, the following term shall have the following meaning:

“Preventive behavioral health services”, short-term interventions in supportive group, individual, or family settings that cultivate coping skills and strategies for symptoms of depression, anxiety, and other social and emotional concerns, which may prevent the development of behavioral health conditions for members who are under 21 years old who have a positive behavioral health screening, or, in the case of an infant, a caregiver with a positive post-partum depression screening, even if the individual does not meet criteria for behavioral health diagnosis.

(b)(1) Any subscription certificate under an individual or group medical service agreement that is delivered, issued or renewed within or without the commonwealth shall provide coverage for no fewer than six sessions of preventive behavioral health services provided by a qualified licensed behavioral health clinician, or a non-licensed clinician or trainee under supervision, without requiring prior authorization. Coverage shall include individual, family and group sessions when delivered by a behavioral health clinician practicing in an integrated pediatric primary care setting and group sessions when delivered in community-based outpatient and school settings. Preventive behavioral health services shall be covered with no patient cost-sharing; provided, however, that cost-sharing shall be required if the applicable plan is governed by the Federal Internal Revenue Code and would lose its tax-exempt status as a result of the prohibition on cost-sharing for this service.

(2) Payers covered under this section shall accept an alternative diagnosis code, including a Social Determinants of Health Z-code, as the primary diagnosis from eligible providers submitting claims for preventive behavioral health services.

SECTION 5. Chapter 176G of the General Laws, is hereby amended by inserting after section 4NN the following section:-

Section 4OO. (a) For the purpose of this section, the following term shall have the following meaning:

“Preventive behavioral health services”, short-term interventions in supportive group, individual, or family settings that cultivate coping skills and strategies for symptoms of depression, anxiety, and other social and emotional concerns, which may prevent the development of behavioral health conditions for members who are under 21 years old who have a positive behavioral health screening, or, in the case of an infant, a caregiver with a positive post-partum depression screening, even if the individual does not meet criteria for behavioral health diagnosis.

(b)(1) Any individual or group health maintenance contract that is issued or renewed within or without the commonwealth shall provide coverage for no fewer than six sessions of preventive behavioral health services provided by a qualified licensed behavioral health clinician, or a non-licensed clinician or trainee under supervision, without requiring prior authorization. Coverage shall include individual, family and group sessions when delivered by a behavioral health clinician practicing in an integrated pediatric primary care setting and group sessions when delivered in community-based outpatient and school settings. Preventive behavioral health services shall be covered with no patient cost-sharing; provided, however, that

121 cost-sharing shall be required if the applicable plan is governed by the Federal Internal Revenue
122 Code and would lose its tax-exempt status as a result of the prohibition on cost-sharing for this
123 service.

124 (2) Payers covered under this section shall accept an alternative diagnosis code, including
125 a Social Determinants of Health Z-code, as the primary diagnosis from eligible providers
126 submitting claims for preventive behavioral health services.

127 SECTION 6. The division of insurance, in consultation with the office of Medicaid, shall
128 develop guidance to implement coverage of preventive behavioral health services.